

Superior Court of Washington, County of _____

In the Guardianship of:

Respondent/s (minors/children)

Case Number: _____

Standby Minor Guardianship Petition
(Clerk Code: PTAPMG)

☐ Clerk's action required: 10

☐ No Fee 22

Standby Minor Guardianship Petition

Use this form to appoint a guardian by agreement, or if in the next 2 years no parent is likely to be willing or able to provide for the support, care, education, health, safety, and welfare of a child under age 18 (exercise the parenting functions in RCW 26.09.004). A parent or standby guardian may file the petition. Use this form together with:

- Notice of Hearing about Standby Minor Guardianship Petition (form GDN M 701)
- Reasons for Minor Guardianship (form GDN M 103)
- Criminal History Cover Sheet (form GDN M 407)
- Motion and Order to DCYF to Release CPS Information (forms GDN M 404 and GDN M 405).

1. Children

I ask the court to appoint a standby guardian for the following children (under age 18) who have the same legal parents:

Child's Name	Age	Child's Name	Age
1.		2.	
3.		4.	

Important! Do not list more than one child unless they all have the same parents. If they have different parents, fill out a separate Petition for each child.

County – I am filing in this county because (*check all that apply*):

☐ the children live here or are present in this county now.

☐ there is another case involving custody or parental rights already in progress here.

Lawyer for children – The children (*check one*):

☐ do **not** have a lawyer.

☐ are represented by (*lawyer's name*): _____

Lawyer's address: _____

2. **Petitioner/s**

My name is: _____

☐ I am the parent of the children.

☐ I am the nominated Standby Guardian,

My home address (principal residence): _____

My street address (if different): _____

☐ **Co-Petitioner** (*If there is another Petitioner in this case*)

My name is: _____

My home address (principal residence): _____

My street address (if different): _____

3. **Who is the standby guardian?**

☐ A parent nominated a standby guardian on (*date*) _____

The standby guardian's name is: _____

I've attached a copy of the document a parent signed to designate a standby guardian.

Standby guardian's address: _____

4. **Lay Guardian Training**

Complete lay guardian training at

<https://www.courts.wa.gov/guardianportal/index.cfm?fa=guardianportal.title11minor>

The proposed guardian:

☐ has completed the lay guardian training.

☐ will complete the lay guardian training before the final order is entered.

5. **Why is a standby guardian needed?**

Important! You must complete the *Reasons for Minor Guardianship*, form GDN M 103.

Within 2 years of appointment, no parent will likely be willing or able to provide for the support, care, education, health, safety, and welfare of a child under age 18 (exercise

the parenting functions in RCW 26.09.004). It is in the children's best interest to appoint a standby guardian.

6. When can the minor guardianship begin?

*Explain what event or circumstances will cause the standby guardian to begin acting as guardian. The standby guardian **must** come to court, file the Acceptance of Appointment, get Letters of Guardianship issued by the Clerk, and give notice to all required parties at that time.*

The standby guardian may accept their appointment and act as guardian when _____

People

7. Parents

The children's legal parents are listed below:

Parent 1 (Name): _____

☐ Parent 1 is deceased.

☐ Parent 1's parental rights have been terminated.

☐ Parent 1 has a lawyer.

Lawyer's name: _____

Lawyer's address: _____

Parent 2 (Name): _____

☐ Parent 2 is deceased.

☐ Parent 2's parental rights have been terminated.

☐ Parent 2 has a lawyer.

Lawyer's name: _____

Lawyer's address: _____

8. Who must be personally served?

Important! Read the directions for personal service in Notice of Hearing about Standby Minor Guardianship Petition, form GDN M 701. The server must complete Proof of Personal Service, form GDN ALL 007.

I will have a copy of this *Petition*, the *Notice of Hearing about Standby Minor Guardianship Petition*, the *Reasons for Minor Guardianship*, and the *Visitation Attachment* (if any) **personally served** on the parents, the nominated standby guardian, any child 12 or older, and the child's attorney if any.

9. Addresses Attached to Notice of Hearing

I have included addresses for the people in sections 2 through 7, if known, on the *Notice of Hearing about Standby Minor Guardianship Petition and Notice Attachment: List of*

People to be Served. The *Notice* and *Attachment* are made part of this petition (incorporated by reference).

10. Does anyone need an interpreter or other communication support?

☐ No.

☐ Yes. The following people need an interpreter, translator, or other form of support to communicate effectively with the court or understand court proceedings:

Name	Language or type of support needed

Clerk's action required. Note interpreter or communication support needs in the case management system.

➤ **Jurisdiction**

11. Personal Jurisdiction Over Parents

Fill out below to say if a Washington State court has personal jurisdiction (authority to make decisions) over each parent.

Basis for Personal Jurisdiction (check all that apply):	Parent 1 Name: _____	Parent 2 Name: _____
Will be served in Washington	☐	☐
Lives in Washington now	☐	☐
Lived in Washington with child	☐	☐
Lived in Washington and paid pregnancy costs or support for child	☐	☐
Caused child to live in Washington	☐	☐
Had sex in Washington that may have produced the child	☐	☐
Agrees to Washington deciding	☐	☐
None of the above	☐	☐

12. Children's Home/s for Purposes of Jurisdiction (UCCJEA)

Important! The information about where the children have lived for the past 5 years is for the court to decide if Washington state has authority to make decisions about the child, or if another state, Indian tribe, or foreign country should have that authority. Do **not** include temporary stays or full addresses — only the state, Indian reservation, or foreign country.

During the past 5 years have any of the children lived:

- on an Indian reservation,
- outside Washington state,
- in a foreign country, or
- with anyone other than a parent?

☐ No. (Skip to 13.)

☐ Yes. (Fill out below to show where each child has lived during the last 5 years.)

Dates	Children	Lived with	In which state, Indian reservation, or foreign country
From: To:	☐ All children ☐ (Name/s):	☐ Petitioner/s ☐ Parent/s (name/s): ☐ Other (name):	
From: To:	☐ All children ☐ (Name/s):	☐ Petitioner/s ☐ Parent/s (name/s): ☐ Other (name):	
From: To:	☐ All children ☐ (Name/s):	☐ Petitioner/s ☐ Parent/s (name/s): ☐ Other (name):	
From: To:	☐ All children ☐ (Name/s):	☐ Petitioner/s ☐ Parent/s (name/s): ☐ Other (name):	

13. Other People with a Legal Right to Spend Time with a Child

Do you know of anyone besides you and the parents who has, or claims to have, a legal right to spend time with any of these children?

☐ No.

☐ Yes. (Name/s) _____ has or claims to have a legal right to spend time with the children because: _____

14. Other Court Cases Involving a Child

Do you know of any other court cases involving any of these children?

(Check one): ☐ No. (Skip to 15.) ☐ Yes. (Fill out below.)

Kind of case (Family Law, Criminal, Protection Order, Juvenile, Dependency, Other)	County and State	Case number and year	Children
			☐ All children ☐ (Name/s):
			☐ All children ☐ (Name/s):
			☐ All children

Kind of case (Family Law, Criminal, Protection Order, Juvenile, Dependency, Other)	County and State	Case number and year	Children
			[] (Name/s):
			[] All children [] (Name/s):

Warning! If there is a dependency (CPS) case for the children, you must get approval from the dependency court to file this case.

15. Tribal Heritage

If there is a reason to know that a child has **tribal heritage** (including ancestry or familial political affiliation), the court must treat the child as an Indian child unless and until the affected tribe/s decide otherwise or decline to respond after receiving proper notice.
An **Indian child** is a child who is a member of an Indian tribe, or who is the biological child of an Indian tribe member and eligible for membership. You must try to find out if any child in this case is an Indian child. If so, the federal and state Indian Child Welfare Acts will apply to your case.

Could any of the children be Indian children? (Check all that apply):

[] **No.**

[] None of the children are Indian children.

[] These children are not Indian children (name/s): _____

I know this because (explain if the children have no tribal heritage, or if any possible tribal heritage has already been explored and decided in another court proceeding that complied with ICWA): _____

[] **Yes or Maybe.** These children are or may be Indian children. They have or may have heritage from the tribe/s listed below:

Children	Tribe
[] All children [] (Name/s):	
[] All children [] (Name/s):	

I will provide the *Indian Child Welfare Act Notice* (form GDN M 401) and a copy of this *Petition* to the tribe/s named above and other necessary people or agencies.

[] **I do not know** if any of the children are Indian children or have tribal heritage. I have done the following things to try to find out:

16. Jurisdiction Over Indian Children

- ☐ Does not apply. None of the children are Indian children.
- ☐ A state court can decide this case for the Indian children because:
- ☐ (*Children's names*):_____ are **not** domiciled or living on an Indian reservation, and are not wards of a tribal court. (25 U.S.C. § 1911)
- ☐ (*Children's names*):_____ are domiciled or living on an Indian reservation, and (*check all that apply*):
- ☐ The children's tribe agrees to Washington State's concurrent jurisdiction.
- ☐ The children's tribe decided not to use its exclusive jurisdiction (expressly declined). (RCW 13.38.060)
- ☐ Washington State should claim emergency jurisdiction for Indian children temporarily located off the reservation to protect the children from immediate physical damage or harm. (RCW 13.38.140)

17. Jurisdiction Over the Children (RCW 26.27.201 – .221, .231, .261, .271)

This Court can decide this case for the children because (*check all that apply; if a box applies to all of the children, you may write "the children" instead of listing names*):

- ☐ **Exclusive, continuing jurisdiction** – A Washington court has already made a custody order or parenting plan for the children, and the court still has authority to make other orders for (*children's names*):_____.
- ☐ **Home state jurisdiction** – Washington is the children's home state because (*check all that apply*):
- ☐ (*Children's names*):_____ lived in Washington with a parent or someone acting as a parent for at least the 6 months just before this case was filed, or if the children are less than 6 months old, they have lived in Washington with a parent, or someone acting as a parent, since birth.
- ☐ There were times the children were not in Washington in the 6 months just before this case was filed (or since birth if they are less than 6 months old), but those were temporary absences.
- ☐ (*Children's names*):_____ do not live in Washington right now, but Washington was the children's home state sometime in the 6 months just before this case was filed, and a parent, or someone acting as a parent of the children, still lives in Washington.
- ☐ (*Children's names*):_____ do not have another home state.
- ☐ **No home state or home state declined** – No court of any other state (or tribe) has the jurisdiction to make decisions for (*children's names*):_____
_____ or a court in the children's home state (or tribe) decided it is better to have this case in Washington **and**:

- The children and a parent, or someone acting as a parent, have ties to Washington beyond just living here; **and**
 - There is a lot of information (substantial evidence) about the children's care, protection, education, and relationships in this state.
- [] **Other state declined** – The courts in other states (or tribes) that might be (*children's names*): _____'s home state have refused to take this case because it is better to have this case in Washington.
- [] **Temporary emergency jurisdiction** – The court can make decisions for (*children's names*): _____ because the children are in this state now **and** were abandoned here **or** need emergency protection because the children (or the children's parent or sibling) were abused or threatened with abuse. (*Check one*):
- [] A custody case involving the children was filed in the children's home state (*name of state or tribe*): _____. Washington should take temporary emergency jurisdiction over the children until the Petitioner can get a court order from the children's home state (or tribe).
- [] There is **no** valid custody order or open custody case in the children's home state (*name of state or tribe*): _____. If no case is filed in the children's home state (or tribe) by the time the children have been in Washington for 6 months, (*date*): _____, Washington should have final jurisdiction over the children.
- [] Other reason (*specify*): _____

➤ **Requests**

18. Parents' Visitation

Important! If you are asking for limited or no visitation, you must explain why in the Reasons for Minor Guardianship (form GDN M 103). Use the Visitation Attachment (form GDN M 104) for more detailed options for phased-in visitation, supervision, evaluation, treatment, or other requirements.

I ask the court to confirm and order the following contact or visitation between the parents and children:

[] I ask the court to approve (*name/s*) _____ proposed visitation:

[] I ask the court to approve (*name/s*) _____ proposed *Visitation Attachment*, form GDN M 104. I am filing and serving my proposed *Visitation Attachment* with this *Petition*. (*This must be included when personally serving any parent.*)

[] I ask the court to give **no visitation** to parent (*name/s*) _____ because the limiting factors from RCW 26.09.191 apply and are severe enough to justify no visitation.

19. Decision-making Authority

I ask the court to make the following orders about who has the right to make decisions for the children (*check all that apply*):

Type of Major Decision	Guardian/s Decide	Guardian/s and Parent/s Decide Together (<i>write name or "both parents"</i>)	Parent/s Decide (<i>write one parent's name or "both parents"</i>)	Child Decides (<i>write name/s or "all children"</i>)
School / educational	☐	☐ _____	☐ _____	☐ _____
Healthcare (not emergency)	☐	☐ _____	☐ _____	☐ _____
Authority to apply for passport and travel internationally	☐	☐ _____	☐ _____	☐ _____
Driver's license or state I.D.	☐	☐ _____	☐ _____	☐ _____
Other:	☐	☐ _____	☐ _____	☐ _____
Other:	☐	☐ _____	☐ _____	☐ _____

20. Access to Children's Records

Important! If you are asking to limit access to records, you must explain why in the Reasons for Minor Guardianship (form GDN M 103). The children may have the right to access and control access to records under other laws.

- ☐ I am not asking the court to limit access to records.
- ☐ I am asking the court to limit the parent's access to these types of records for the children (*Check all that apply*):
- ☐ school/educational
- ☐ healthcare
- ☐ other (*specify*): _____

21. Children's Property

As far as I know, the children have the following property, other than their clothing and other personal items (personal effects) and documents:

- ☐ None
- ☐ (*Give a general statement of the children's property with an estimate of its value. Examples: disability or insurance benefits, trust account, money from a lawsuit, public assistance, TANF, child support*)
- _____
- _____

22. Fees and Costs

Filing Fee – In some situations the court will **not** charge a fee for filing this case.

- When the proposed guardian is a relative, the fee is waived automatically.

- *When the petitioner (including a child as petitioner) is low income, the petitioner may use forms GR 34.0100, 34.0300, and 34.0500 to ask the court to waive the fee.*

- ☐ No request.
- ☐ No fee shall be charged because the proposed standby guardian is a relative of the children, **not** a professional guardian.
- ☐ Order who should pay for court costs, Court Visitor fees, and other reasonable fees.

23. Other Requests, If Any

Petitioner fills out below:

I declare under penalty of perjury under the laws of the State of Washington that the facts I have provided on this form (including any attachments) are true.

☐ I have attached (#):_____ pages.

Signed at (*city and state*):_____ Date:_____



Petitioner signs here

Print name

My contact information is:

Email:_____ *Phone (Optional)*:_____

Co-Petitioner (if any) fills out below:

I declare under penalty of perjury under the laws of the State of Washington that the facts I have provided on this form are true.

Signed at (*city and state*):_____ Date:_____



Other Petitioner signs here

Print name

My contact information is:

Email:_____ *Phone (Optional)*:_____

Petitioner's lawyer (if any) fills out below:



Petitioner's lawyer signs here _____ *Print name and WSBA No.* _____ *Date*

☐ A parent fills out below if they agree to join this Petition:

I, (*name*):_____, agree to join this *Petition*. I understand that if I fill out and sign below, the court may approve the requests listed in this *Petition* unless I file and serve a *Response* before the court signs final orders. (*Check one*):

- ☐ I do not need to be notified about the court's hearings or decisions in this case.
- ☐ I ask the Petitioner to notify me about any hearings in this case. (*List an address where you agree to accept legal documents. This may be a lawyer's address or any other address.*)

Address City State Zip

Email: _____



Parent signs here

Print name

Date

☐ **A parent fills out below if they agree to join this Petition:**

I, (*name*): _____, agree to join this *Petition*. I understand that if I fill out and sign below, the court may approve the requests listed in this *Petition* unless I file and serve a *Response* before the court signs final orders. (*Check one*):

☐ I do not need to be notified about the court's hearings or decisions in this case.

☐ I ask the Petitioner to notify me about any hearings in this case. (*List an address where you agree to accept legal documents. This may be a lawyer's address or any other address.*)

Address City State Zip

Email: _____



Parent signs here

Print name

Date